



CHAPTER xvii.

An Act to authorise the Accrington District Gas and Water Board to make new waterworks and for other purposes. A.D. 1906.
[29th May 1906.]

WHEREAS the Accrington District Gas and Water Board (herein-after called "the Board") were by the Accrington District Gas and Water Board Act 1894 (herein-after called "the Act of 1894") incorporated with perpetual succession and a common seal to take over the undertaking of the Accrington Gas and Waterworks Company:

And whereas under the powers of the Act of 1894 the Board have taken over the undertaking of the said company and are now the authority for the supply of gas and water and are supplying gas and water within the limits of supply of the said Act:

And whereas under the powers of the Accrington District Gas and Water Board Act 1905 (herein-after referred to as "the Act of 1905") the limits of supply of the Board were extended so as to include the township and parish of Altham and the Board were authorised to construct the additional waterworks in the said Act mentioned:

And whereas the present waterworks of the Board as authorised to be extended by the Act of 1905 are and will be insufficient to meet the increasing demand for water within the Board's area of supply and it is necessary that the Board should purchase additional lands and construct the additional works in this Act described:

And whereas it is expedient that the Board should be authorised to acquire the necessary land and execute the necessary works and borrow the money required for the same:

A.D. 1906. And whereas estimates have been prepared by the Board
 and are as follows :—

For the purchase of land and for the execution of the
works authorised by this Act the sum of twenty-six
thousand six hundred and thirty pounds :

And whereas the works mentioned in such estimates
respectively are permanent works and it is expedient that the
cost thereof should be spread over a term of years :

And whereas the purposes aforesaid cannot be effected
without the authority of Parliament :

And whereas a plan and section showing the lines and
levels of the works authorised by this Act and a plan of the
lands by this Act authorised to be acquired and a book of
reference containing the names of the owners or reputed
owners and lessees or reputed lessees and occupiers of the
lands required or which may be taken for the purposes or
under the powers of this Act were duly deposited with the
clerk of the peace for the county palatine of Lancaster which
plan section and book of reference are in this Act respec-
tively referred to as the deposited plan section and book of
reference :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by
and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Accrington District Gas
and Water Board Act 1906.

Incorpora-
tion of Act.

2. The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845) the Waterworks Clauses Act
1847 (except the provisions thereof with respect to the amount
of profit to be received by the Undertakers when the waterworks
are carried on for their benefit and except section 83 relating to
accounts) and for the purpose of incorporation with this Act
section 44 of the said Act shall be read and have effect as if the
words "with the consent in writing of the owner or reputed
owner of any such house or of the agent of such owner" were
omitted therefrom and the Waterworks Clauses Act 1863 so far
as the same are applicable for the purposes of and not varied

by or inconsistent with this Act are hereby incorporated with A.D. 1906.
and form part of this Act.

3. Subject to the provisions of this Act the Board may in the parishes of Altham and Huncoat in the rural district of Burnley in the county palatine of Lancaster make and maintain in the lines and situations and according to the levels shown on the deposited plan and section the following works and may enter upon take and hold such of the lands delineated on the deposited plan and described in the deposited book of reference as they may require therefor The works are as follows:—

Power to
make water-
works.

- (1) A pumping station (herein-after referred to as "the Altham Bridge pumping station") with a well bore-holes adits and other works and conveniences connected therewith wholly situate in the said parish of Altham in the field or enclosure numbered 85 on the $\frac{1}{2500}$ Ordnance map (1st edition 1893):
- (2) A line or lines of pipes (No. 1) commencing in the said parish of Altham at or in the Altham Bridge pumping station and terminating in the east side of the existing Upper Burnley Road reservoir belonging to the Board in the said parish of Huncoat.

4. In the construction of the works authorised by this Act the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plan and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited section to any extent not exceeding five feet upwards and to any extent downwards Provided that except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited section.

Limits of
deviation.

5. If the works authorised by this Act are not completed within five years from the passing of this Act the powers by this Act granted for the making thereof and otherwise in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Board from extending enlarging deepening or increasing the number of or altering or removing any of their engines machinery wells

Period for
completion of
waterworks.

A.D. 1906. — adits standages mains or pipes at any time and from time to time as the Board may think fit for the purposes of their undertaking.

Period for compulsory purchase of lands.

6. The powers of the Board for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Power to take waters.

7. Subject to the provisions of this Act the Board may collect impound take use divert and appropriate for the purposes of their waterworks all or any of the underground springs and waters as can or may be collected or taken by the works authorised by this Act.

Powers for repairs of aqueducts and temporary discharge of water into streams.

8. For the purpose of sinking any well executing any necessary work of repair or of cleansing or of examining any well aqueduct conduit or other works by this Act authorised or the existing or authorised reservoirs and works of the Board the Board may cause the water in any such reservoir well aqueduct conduit or works to be temporarily discharged into any available stream or watercourse.

In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Owners may be required to sell parts only of certain lands and buildings.

9. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Board of the powers of this Act it may happen that a portion only of the property shown or partly shown on the deposited plan and thereon numbered 1 in the parish of Altham will be sufficient for the purposes of the Board and that such portion or some other portion less than the whole can be severed from the remainder of the said property without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in the said property and whereof a portion only is required for the purposes of the Board or each or any of them are herein-after included in the term "the owner":

- (2) If for twenty-one days after the service of notice to treat in respect of the specified portion of the said property the owner shall fail to notify in writing to the Board that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise : A.D. 1906.
- (3) If within such twenty-one days the owner shall by notice in writing to the Board allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the said property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the said property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion which the tribunal shall have determined to be so severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the said property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the

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tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:

- (6) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that the said property or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Correction of
errors &c. in
deposited
plan and
book of
reference.

10. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Board after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county palatine

of Lancaster for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and duplicates thereof shall also be deposited with the clerks to the councils of the respective parishes in which the lands affected thereby are situate and such certificate and duplicates respectively shall be kept by such clerk of the peace and clerks of parish councils respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate.

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11. In addition to the lands which the Board are otherwise authorised to purchase or hold they may for any of the purposes of their waterworks undertaking from time to time by agreement purchase any additional quantity of land not exceeding in the whole ten acres or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in or over any lands or otherwise which they may from time to time think requisite for any of the purposes of their undertaking Provided that the Board shall not on any of such lands create or permit any nuisance or erect or authorise or permit the erection of any building other than buildings connected with or necessary for such undertaking.

Power to take additional lands by agreement.

12. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Board may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein which may have been or may be acquired by them under this Act and which are not required by them for the purposes of their undertaking and may sell exchange or dispose of any rents reserved on

Power to retain sell &c. lands.

A.D. 1906. the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

For protection of George Hargreaves and Company.

13. The following provisions shall unless otherwise agreed between the Board and George Hargreaves and Company their successors or assigns (who are together herein-after in this section referred to as "the owners") apply and have effect for the protection of the owners (that is to say):—

- (1) In constructing the well boreholes adits and other works and conveniences referred to in the section of this Act the marginal note of which is "Power to make waterworks" the Board shall not carry the said well boreholes adits and other works and conveniences down to a greater distance from the surface than 120 yards without the consent in writing of the owners. Provided that if by the colliery workings of the owners or otherwise the water in the said well or boreholes shall be drawn down below such distance of 120 yards below the surface the Board may carry the said well or boreholes to such further depth as may be consented to by the owners. Provided further that if the owners do not so consent within one month of receiving from the Board an application therefor the Board may appeal to an arbitrator to be appointed in manner provided by this section to inquire as to whether the consent is unreasonably refused or withheld and such arbitrator may dispense therewith if in his opinion it is unreasonably refused or withheld. The consent shall be deemed to be unreasonably refused or withheld if the arbitrator is of opinion and finds that the said well boreholes adits or other works may be carried down to a greater distance from the surface than 120 yards without causing damage injury or danger thereof to the colliery workings of the owners and the arbitrator shall have the power to declare and determine to what distance from the surface the said well boreholes adits and other works may be so carried down:

(2) No well borehole adit or other work shall be sunk carried down driven or made within forty yards of the shaft of the owners' colliery known as "the Calder Pit": A.D. 1906.

(3) The prescribed dimensions or sections of the airways headways or gateways referred to in section 24 of the Waterworks Clauses Act 1847 shall for the purposes of this Act and for the protection of the owners be construed and read as being of such width and such height not exceeding 19 feet and 15 feet respectively inside measure as the owners shall deem convenient. Provided that if the owners are desirous of exceeding the above limits and the Board do not agree thereto it shall be referred to an arbitrator as in this section herein-after provided to inquire and determine whether such width or height may be exceeded and such arbitrator shall have the power to declare and determine what may be the additional width or height or manner of construction of the said airways headways or gateways:

(4) Nothing in this Act contained shall authorise the Board so to exercise the powers hereby conferred upon them as to damage or jeopardise or in any way interfere with the said colliery workings of the owners or their buildings plant and machinery:

(5) The arbitrator in this section referred to shall be appointed by the President of the Institution of Civil Engineers on the application either of the Board or the owners and the provisions of the Arbitration Act 1889 shall apply to any reference to such arbitrator.

14. For the protection of the owners for the time being of the Altham Manor estate in the county palatine of Lancaster (herein-after called "the owners") the following provisions shall unless otherwise agreed between the Board and the owners apply and have effect (that is to say):—

For protection of owners of Altham Manor estate.

(1) The owners shall on request by the Board sell to the Board and the Board shall purchase the fee simple free from incumbrances and exclusive of mines and minerals of and in the land delineated and numbered 1

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on the deposited plan in the parish of Altham and the easement for making and maintaining Work No. 2 by this Act authorised where it passes through the lands of the owners for a distance not exceeding 200 yards from the said land for the sum of three thousand pounds which sum shall include the compensation payable in respect of any damage sustained by the owners by reason of the severing of the land taken from or otherwise injuriously affecting the other lands of the owners and shall also include the exclusive right of obtaining water by means of pumping on the estate within a radius of one mile from the well by this Act authorised subject to the rights of George Hargreaves and Company their successors and assigns of pumping water for mining purposes and to the rights of the tenants of the farms on the said estate to obtain water from existing wells streams springs ponds pools and watering places on the said estate but nothing herein contained shall confer on the Board any right of pumping water except upon the said land so purchased by the Board as aforesaid:

- (2) The provisions of section 82 of the Lands Clauses Consolidation Act 1845 shall apply to the costs of the conveyance of the said land easement and exclusive right of obtaining water to the Board:
- (3) If the supply of water to any farm on the said estate from any existing well stream spring pond pool or watering place situate in or upon the said estate is at any time diminished in consequence of the exercise by the Board of the powers conferred on them by this Act the Board shall make good the deficiency and for that purpose shall afford to such farm a supply of water free of all cost and such supply shall be of such quantity and shall be given at such time and place or places and in such manner as may be agreed between the owners and the Board or failing agreement as may be determined by arbitration in manner herein-after provided Provided always that it shall not be obligatory on the owners to show that such diminution has been caused by the

exercise of the powers conferred on the Board by this Act but on the other hand it shall be competent for the Board to show that any such diminution has not been caused by the exercise of such powers: A.D. 1906.

- (4) All mains pipes meters and fittings required for the purpose of supplying water to any farm in pursuance of this section shall be provided laid down and fixed and all such mains pipes and meters shall be maintained by and at the expense of the Board and the owners shall afford to the Board all reasonable or necessary facilities for those purposes but all such fittings shall be maintained and repaired and (when necessary) renewed and made good by the owners to the satisfaction of the Board:
- (5) At all reasonable times after the passing of this Act the Board may upon giving not less than twenty-four hours' previous notice in writing to the owners or their agents inspect and test any wells streams springs ponds pools or watering places within the said estate and for that purpose may enter upon the land and premises upon which any such well stream spring pond pool or watering place is situate making good any damage caused by such inspection or entry:
- (6) The Board shall not create or permit a nuisance on the said land so purchased by them from the owners and shall not erect thereon any buildings other than a dwelling for a caretaker and such buildings and works as may be incident to the pumping station and works by this Act authorised:
- (7) Before using the said land for the purposes of this Act the Board shall make and shall thereafter maintain a sufficient fence for separating the same from the other lands of the owners:
- (8) Subject to the provisions of the section of this Act the marginal note of which is "For protection of George Hargreaves and Company" the Board shall at any time be entitled to make and drive not more than three adits under the estate of the owners in such directions and at such depths not being less than thirty yards from the surface as the Board may deem

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necessary and to a length of not exceeding half a mile measured from the well by this Act authorised and the Board shall pay to the owners the yearly rent of twopence for each and every lineal yard driven beyond the boundary of the land purchased from the owners and shown upon the deposited plan :

- (9) For the purpose of ascertaining whether the provisions of this Act relating to the making of adits and underground works are observed the owners or any person from time to time appointed by them for the purpose may at all reasonable hours in the daytime after the commencement of the works by this Act authorised and until the completion of the same and after giving the Board not less than twenty-four hours' previous notice of their or his intention so to do enter examine and survey the works and the Board shall furnish to such owners or persons all reasonable and proper means and facilities for making such entry examination and survey and if the Board their officers workmen or agents or any of them shall at any time obstruct the owners or other persons as aforesaid in making such entry examination and survey or shall refuse or neglect to furnish to him or them the means and facilities necessary for making such entry examination and survey they or he shall for every such offence be liable to a penalty not exceeding five pounds which may be recovered by such owners or persons in a summary manner in any court of summary jurisdiction :
- (10) Any question which may arise between the Board and the owners as to the quantity time places or manner of any supply of water to be given by the Board in pursuance of this section and any other dispute question or difference which may arise between the Board and the owners under this section shall be referred to the arbitration of an engineer appointed unless otherwise agreed by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

15.—(1) Whenever under the provisions of this Act the Board shall require to lay down place repair alter take up relay remove or renew any mains pipes or apparatus on the bridge carrying Altham Lane over the Accrington and Colne Railway of the Lancashire and Yorkshire Railway Company (in this section called “the company”) or adjoining or in close proximity thereto they shall give to the engineer of the company except in case of emergency fourteen days’ notice in writing of their intention to carry out any such works accompanied by sufficient plans.

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For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

(2) Such works including the making good and repairing of the road over the said bridge and the approaches thereto in so far as the same are disturbed or interfered with by or owing to any operations of the Board shall be laid constructed and executed by and at the expense of the Board under the superintendence and to the reasonable satisfaction of the said engineer and according to plans to be previously reasonably approved by him and so as to avoid as far as possible any injury to the railway of the company or any of the works thereof and so as not to cause any interruption of the passage or conduct of the traffic over such railway.

(3) When the Board open or break up the said road and approaches or the pavement thereof they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road and approaches and pavement so opened or broken up and shall keep the same in good repair for three months after such reinstatement and making good and for such further time if any as the soil so broken up shall continue to subside.

(4) If the Board make delay in completing such work or reinstating and making good such road and approaches and pavement so opened or broken up or neglect to keep the same in repair as aforesaid the company may cause the work so delayed or omitted to be executed and the expense of executing the same shall be repaid to them by the Board.

(5) The Board shall repay to the company the expense of any temporary works or watching which the company may consider reasonably necessary to provide for the protection of the said railway or the traffic thereon during the carrying out of any of the works aforesaid.

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(6) If any injury shall owing to or by reason of any of the matters aforesaid arise to the said railway or interruption to such traffic the Board shall make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner herein-after provided.

(7) Any difference which may arise between the Board and the company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

For pro-
tection of
county
council of
Lancashire.

16. Notwithstanding anything in this Act contained the following provisions shall have effect for the protection of the Lancashire County Council (herein-after referred to as "the county council") :—

- (1) Where any aqueduct pipe or main is laid under any main road the same shall be laid so that the upper surface thereof is not less than two feet six inches where possible below the surface of the road and the trench shall be filled in and the surface of the road made good in accordance with the requirements of the county surveyor :
- (2) If after any aqueduct pipe or main has been laid in a main road any sinking or subsidence of the surface of the road shall occur thereby the Board shall at their own expense make up the surface of the road to the satisfaction of the county surveyor and if they fail to do so when required by the county surveyor he may on giving the Board twenty-four hours' notice cause the work to be done and all expenses incurred in connexion with such work as certified by the county surveyor shall be paid by the Board to the county council within one month after notice of the amount so certified by the county surveyor has been given to the Board :
- (3) The county council shall not be liable to the Board for any damage done to any aqueduct pipe or main of the Board laid under a main road caused by the use of a road roller or other engine and the Board

shall indemnify the county council against any claim for damages that may be made against the county council by reason of any sinking or subsidence of the road caused by the construction or failure of any aqueduct pipe or main : A.D. 1906.

- (4) Notwithstanding anything shown on the deposited plan and section the Board shall not under the powers of this Act without the previous consent in writing of the county council construct or lay any aqueduct pipe or main over and across Altham (Hundred) Bridge nor shall they without such like consent fix or attach any girder or support to such bridge for the purpose of supporting any such aqueduct or pipe.

17. For the protection of the Leeds and Liverpool Canal Company (in this section called "the company") the following provisions shall unless otherwise agreed in writing between the company and the Board have effect (that is to say):— For protection of Leeds and Liverpool Canal Company.

- (1) In laying and maintaining the line of pipes (No. 1) over the bridge of the company called "Altham Bridge" in the parish of Altham and canal of the company in that parish the Board shall not acquire any land or property of the company but the Board may take and the company may and shall sell and grant accordingly an easement for the laying and maintenance of the said pipes over the said bridge and canal and the Board shall not during the laying or maintenance of the works unnecessarily make use of interfere with prejudice or affect the structure of the said bridge Provided that no payment for an easement shall be made by the Board to the company if the said line of pipes be laid actually within the limits of the public highway over the said bridge and without interfering with or affecting the structure of the said bridge :
- (2) One month before the Board shall lay the said pipes over the said bridge and canal they shall deposit at the principal office of the company a plan and section showing the position and levels and mode of laying of the said pipes and the works shall not be commenced until the engineer of the company or

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in case of difference an arbitrator appointed under this section shall have reasonably approved thereof in writing under his hand. Provided that if the said engineer does not within the aforesaid period of one month so express his approval or disapproval thereof he shall be deemed to have approved thereof:

(3) The Board shall at their own expense maintain the said pipes and the works in connexion therewith in good repair at all times and the Board shall indemnify the company from and against all damages claims and demands for obstruction to the traffic over the said bridge occasioned by any of the works of the Board:

(4) The Board shall make good all damage that may be occasioned to the works or property of the company by the laying maintenance renewal or want of repair of any of the works of the Board but—

(a) in every case of pressing necessity; and

(b) in every other case if after seven days' notice in writing thereof given to the Board by the company the Board neglect to proceed with due diligence to make good such damage;

the Company may if they think fit make good the damage and the amount expended by them in so doing shall be repaid to them by the Board:

(5) If the company shall at any time hereafter desire to alter widen reconstruct or otherwise improve the said bridge they shall be at liberty so to do and in such case the Board shall at their own expense if required by the engineer of the company remove or divert the said pipes over the said bridge or make such alteration in the position thereof as may be necessitated by the works of the company during the execution thereof and shall on the completion thereof be at liberty to replace them over the bridge as so altered widened reconstructed or improved in such manner as the circumstances of the case may permit:

(6) If and whenever by any act or omission of the Board any part of the canal or towing-path shall be obstructed or rendered impassable to boats barges

or other vessels navigating or using the canal the Board shall pay to the company all loss damages costs and expenses which they may sustain by reason or on account of such obstruction: A.D. 1906.

- (7) Any difference which may arise between the Board and the company with respect to any matter in this section contained shall unless otherwise agreed be determined by an engineer to be appointed as arbitrator on the application of either party by the President of the Institution of Civil Engineers.

18. The works by this Act authorised to be constructed shall form part of the water undertaking of the Board and the Board may use the water collected diverted and impounded by means of the same for the purpose of supplying water. New works to be part of undertaking.

19.—(1) The Board may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under any public general Act borrow at interest upon mortgage of the revenue of their undertaking or any part thereof and the moneys receivable by them from the district funds and general district rates of the constituent authorities under the provisions of the Act of 1894 for the purposes undermentioned the following sums (that is to say):— Power to borrow.

(a) For the purchase of land and for the execution of the works by this Act authorised the sum of twenty-six thousand six hundred and thirty pounds;

(b) To pay the costs of this Act the sum necessary for that purpose.

(2) Moneys borrowed under this section shall be applied only for the purposes for which it is authorised to be borrowed and to which capital is properly applicable. Application of money borrowed.

(3) Moneys borrowed under this section for the purposes (a) shall be repaid within forty years from the time or times of the borrowing of the same and for the purpose (b) within five years from the passing of this Act and such repayment shall be made either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall not as regards moneys borrowed for the Sinking fund.

A.D. 1906. purposes (a) be required to be made until the expiration of three years from the passing of this Act.

Power to re-borrow.

(4) The Board may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act or under the Acts of 1894 and 1905 which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Board within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Board shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application of provisions of Acts of 1894 and 1905.

20. The following sections of the Acts of 1894 and 1905 (that is to say):—

Act of 1894.

- Section 68 (Board may borrow under Local Loans Act 1875);
- Section 69 (As to mortgages of Board);
- Section 71 (Regulations as to sinking funds);
- Section 72 (Protection of lender from inquiry);
- Section 73 (Annual return to Local Government Board);
- and
- Section 82 (Justices not disqualified);

Act of 1905.

- Section 7 (Power to make subsidiary works);
- Section 12 (Reservation of water rights &c. on sale);
- Section 29 (Evidence of appointments authority &c.);
- and

Section 30 (Inquiries by Local Government Board); shall apply mutatis mutandis to and in relation to the powers by this Act granted.

21. The costs charges and expenses preliminary to and of A.D. 1906.
and incidental to preparing and obtaining this Act as taxed ^{Costs of}
by the taxing officer of the House of Lords or of the House ^{Act.}
of Commons shall be paid by the Board and may be paid out
of the revenue of their water undertaking or out of moneys
borrowed under the powers of this Act.

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